

26NWCV00525 26NWCV00525

County: los-angeles

Division: Civil Law and Motion

Department: SED

Hearing date: 2026-06-29

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SE%20%2CSED%2C06%2F29%2F2026

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Case Number: 26NWCV00525 Hearing Date: June 29, 2026 Dept: SED

ANTONIO GARCIA, ET AL. V. MG

SERVICE ENTERPRISES, INC., ET AL.

CASE NO.: 26NWCV00525

HEARING: 06/29/2026 @ 9:30 a.m.

#12

TENTATIVE ORDER

Defendants MG Service

Enterprises, Inc., dba Cremation Society of Los Angeles, dba Allen-English

& Estrada Funeral Service, and Christian Mendez's demurrer to the entire

First Amended Complaint, as to Defendant Christian Mendez, is SUSTAINED WITH

LEAVE TO AMEND.

Defendants' demurrer to the

First, Second, and Fourth Causes of Action is SUSTAINED WITH LEAVE TO AMEND.

Defendants' motion to strike

is MOOT.

Plaintiffs Antonio Garcia,

Nayeli Garcia, and Brenda Brito shall file and serve a Second Amended Complaint

within 30 days of notice of this ruling.

Moving parties to give notice.

Defendants MG Service

Enterprises, Inc., dba Cremation Society of Los Angeles, and dba Allen-English & Estrada Funeral Service and Christian Mendez (collectively, Defendants) demur to the first, second and fourth causes of action of the First Amended Complaint (FAC) filed by Plaintiffs Antonio Garcia, Nayeli Garcia, and Brenda Brito (collectively, Plaintiffs).

Defendants also move to strike portions of the FAC on the grounds that they constitute irrelevant and improper matter and seek non-recoverable damages.

Background

On May 1, 2026, Plaintiffs filed the operative FAC against Defendants and Does 1 through 50, inclusive, asserting four causes of action: (1) Breach of Contract; (2) Breach of Implied Covenant of Good Faith and Fair Dealing; (3) Negligence; and (4) Unfair Business Practices.

Plaintiffs allege that Defendants mishandled and failed to properly preserve their mother's remains and that Defendants breached their contract, acted negligently, and engaged in unfair business practices by failing to provide required disclosures and by misrepresenting that the body would be adequately preserved.

Legal Standard

As a general matter, in a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. *¿* (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) "A demurrer tests the pleading alone, and not the evidence or facts alleged." (E-Fab, Inc. v. Accountants, Inc. Servs. (2007) 153 Cal.App.4th 1308, 1315.) As such, the court assumes the truth of the complaint's properly pleaded or implied factual allegations. (Id.) The only issue a demurrer is concerned with is whether the complaint, as it stands, states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.)

Where a demurrer is sustained,
leave to amend must be allowed where there is a reasonable possibility of
successful amendment. (Goodman v.
Kennedy (1976) 18 Cal.3d 335, 348.)
The burden is on the plaintiff to show the court that a pleading can be
amended successfully. (Id.; Lewis v.
YouTube, LLC (2015) 244 Cal.App.4th 118, 226.) However, “[i]f there is any reasonable
possibility that the plaintiff can state a good cause of action, it is error to
sustain a demurrer without leave to amend.”
(Youngman v. Nevada Irrigation Dist. (1969) 70 Cal.2d 240,
245).

Plaintiff is only required to
allege ultimate facts, not evidentiary facts.
(See Committee on Children's Television, Inc. v. General Foods Corp. (1983)
35 Cal.3d 197, 212 [“the complaint should set forth the ultimate facts
constituting the cause of action, not the evidence by which plaintiff proposes
to prove those facts”]; 1 Cal. Affirmative Def. § 10:2 (2d ed.) [allegations of
agency, course and scope of employment, etc. qualify as ultimate facts].) Plaintiff's allegations must be accepted as
true on demurrer. (See Yvanova v. New
Century Mortgage Corp. (2016) 62 Cal.4th 919, 924 [“For purposes of
reviewing a demurrer, we accept the truth of material facts properly pleaded in
the operative complaint”].)

Request for Judicial Notice

Defendants request judicial
notice of the following documents:

1. Complaint

filed on February 13, 2026, in the Los Angeles Superior Court as case no.
26NWCV00525 (Ex. 1.)

2. First

Amended Complaint filed on May 1, 2026, in the Los Angeles Superior Court as
case no. 26NWCV00525 (Ex. 2.)

3. Funeral

Service Purchase Agreement between Cremation Society of Los Angeles and Antonio
Garcia (Ex. 3.)

Judicial notice as to RJN Nos. 1-3
is GRANTED. (Evid. Code § 452(d), (h);
See *Kalnoki v. First American Trustee Servicing Solutions, LLC* (2017) 8
Cal.App.5th 23,37.) However, the court
only takes judicial notice of the foregoing documents only as to “the
existence, content and authenticity of public records and other specified
documents”; it does not take judicial notice of the truth of the factual
matters asserted in those documents. (*Dominguez*
v. Bonta (2022) 87 Cal. App. 5th 389, 400.)

Meet and Confer

Code of Civil Procedure section
430.41, subdivision (a) requires the moving party to meet and confer “in
person, by video conference, or by telephone” in an attempt to resolve a
demurrer’s deficiencies five days before the responsive pleading is due. (Code Civ. Proc. § 430.41(a)(2).)

The Court finds that Defendants have
fulfilled the meet and confer requirement.
(Shirley Decl., ¶¶ 4-7.)

Analysis

Whether
the FAC States a Claim Against Defendant Christian Mendez

Defendants first argue that the
entire FAC fails as to Defendant Christian Mendez (Mendez) because the FAC
contains no factual allegations regarding any conduct by Mendez and therefore
fails to state facts sufficient to constitute any cause of action against him.

A complaint must allege facts
sufficient to state a cause of action against each named defendant. Even where a complaint contains boilerplate
allegations that each defendant was the agent or employee of the others, or
generally refers to “Defendants” collectively, such allegations do
not state a cause of action against a defendant who is not identified in the
charging allegations. (See *Falahati*
v. Kondo (2005) 127 Cal.App.4th 823, 829.)

Here, Mendez is named as a defendant in the caption of the FAC and is identified only in paragraph 4 as an individual domiciled in the State of California. (FAC, ¶ 4.) As Defendants point out, these are the only instances in which Mendez is mentioned, and the FAC contains no other factual allegations concerning him. (Motion, p. 5.)

The court has held that alleging conduct of defendants and each of them was sufficient to charge each with liability. (*Lee v. Escrow Consultants, Inc.* (1989) 210 Cal. App. 3d 915, 925.) But that is not the case here. The FAC broadly alleges that "DEFENDANTS" entered into the contract, mishandled the decedent's remains, and committed the acts giving rise to each cause of action, but it contains no factual allegations identifying Mendez's role in those events or explaining how he personally participated in the alleged wrongdoing.

In opposition, Plaintiffs argue they were not required to identify Mendez separately under each cause of action because the claims arise from general allegations against all Defendants. (Opp., p. 5.) Plaintiffs contend they sufficiently alleged Mendez's involvement by alleging he was an agent and employee of MG Service Enterprises, Inc., and that all Defendants acted through their agents and employees. (*Ibid.*, citing FAC, ¶ 10.)

The Court is not persuaded. Paragraph 10 merely alleges that all defendants acted as agents and employees of one another and that each defendant authorized and ratified the conduct of the others. (FAC, ¶ 10.) It does not identify any act or omission by Mendez or otherwise allege facts connecting him to the conduct underlying Plaintiffs' claims. As the California Supreme Court has observed, the blanket use of the term "defendants," without referring to a particular defendant, creates confusion regarding the factual basis for each defendant's alleged liability. (*Moore v. Regents of University of California* (1990) 51 Cal.3d 120, 125 fn. 1, 134 fn. 12.) Accordingly, Plaintiffs have failed to allege facts sufficient to state any cause of action against Mendez.

Accordingly, the demurrer to the FAC as to Defendant Christian Mendez is SUSTAINED WITH LEAVE TO AMEND.

First

Cause of Action: Breach of Contract

Defendants argue that the first cause of action for breach of contract fails because Plaintiffs neither attached a copy of the contract nor set forth its terms verbatim in the FAC. (Motion, p. 3.)

The elements of a breach of contract claim are: (1) the existence of a contract; (2) plaintiff's performance or excuse for nonperformance; (3) defendant's breach; and (4) resulting damages. (Oasis West Realty, LLC v. Goldman (2011) 51 Cal.4th 811, 821.)

In opposition, Plaintiffs argue they were not required to attach the written contract or plead its terms verbatim because they adequately alleged the legal effect of the contract. (Opp., pp. 3-4.) Plaintiffs contend the FAC sufficiently alleges the material terms of the agreement, Defendants' breach, and the resulting damages. (Ibid.)

Although older authority states that "[i]f the action is based on an alleged breach of a written contract, the terms must be set out verbatim in the body of the complaint or a copy of the written instrument must be attached and incorporated by reference", the modern rule permits a plaintiff to plead the legal effect of the contract rather than its precise language. (Otworth v. Southern Pac. Transportation Co. (1985) 166 Cal.App.3d 452, 458-459.) As the court explained in Miles v. Deutsche Bank National Trust Co. (2015) 236 Cal.App.4th 394, 402 (Miles), relying on Construction Protective Services, Inc. v. TIG Specialty Ins. Co. (2002) 29 Cal.4th 189, 199, a plaintiff's failure to attach the written contract or plead its terms verbatim is not fatal so long as the complaint adequately alleges the legal effect of the agreement.

Here, although the FAC neither attaches the written agreement nor recites its terms verbatim, it sufficiently alleges the substance of the parties' agreement. Plaintiffs allege that, on or about February 9, 2024, they entered into a contract with Defendants whereby Defendants agreed to provide cremation-related services, including a private viewing of Decedent prior to cremation, in exchange for \$1,595. (FAC, ¶¶ 16-17, 22, 29.) Plaintiffs further allege that Defendants breached the agreement by failing to properly preserve Decedent's remains, thereby preventing the viewing from occurring as agreed. (Id., ¶ 30.) Plaintiffs also allege that they performed all

obligations required under the contract and that they sustained monetary and emotional distress damages as a result of the alleged breach. (Id., ¶¶ 31-32.)

These allegations adequately plead the legal effect of the contract because they identify the essential terms of the agreement, Plaintiffs' alleged performance, Defendants' alleged breach, and the resulting damages. At the pleading stage, Plaintiffs are not required to attach the written contract or plead each contractual provision verbatim. (Miles, supra, 236 Cal.App.4th at p. 402.)

Defendants, however, argue that the FAC still fails to identify the contracting parties. (Motion p. 6.) The Court agrees. Although the FAC alleges that "PLAINTIFFS entered into a contract with DEFENDANTS" for cremation-related services, it does not identify which Plaintiff or Plaintiffs entered into the agreement, who executed the contract, or otherwise allege facts demonstrating that each Plaintiff is entitled to enforce the contract. (FAC, ¶ 16.) Likewise, paragraph 29 alleges only that the "family of DECEDENT entered into an Agreement with DEFENDANTS," which similarly fails to identify the contracting parties with specificity.

Relying on Christensen v. Superior Court (1991) 54 Cal.3d 868, 906 (Christensen), Plaintiffs argue that relatives who are aware of funeral or crematory services and for whose benefit the services are rendered may recover for emotional distress caused by negligent mishandling of remains even if they were not parties to the contract. (Opp., p. 4.)

Plaintiffs' reliance on Christensen is misplaced. Christensen addressed the class of persons who may recover emotional distress damages arising from the negligent mishandling of a decedent's remains and did not address the pleading requirements for a breach of contract claim or hold that every family member may enforce a funeral services contract. To the contrary, in describing the proposed plaintiff class, the Supreme Court explained that the individual plaintiffs consisted of persons who possessed the statutory right under Health and Safety Code section 7100 to control disposition of the decedent's remains, and/or who contracted for Defendants' services, paid for those services, or represented the estates of persons who did so. (Christensen, supra, 54 Cal.3d at 876-877.) Thus, Christensen

does not relieve Plaintiffs of pleading facts establishing the basis upon which each Plaintiff is entitled to enforce the alleged contract.

Accordingly, the FAC fails to allege facts sufficient to establish which Plaintiffs are parties to the alleged contract or the basis upon which each Plaintiff seeks to enforce it.

The demurrer to the first cause of action is therefore SUSTAINED WITH LEAVE TO AMEND.

Second

Cause of Action: Breach of Implied Covenant of Good Faith and Fair Dealing

Defendants argue that Plaintiffs' claims for breach of implied covenant of good faith and fair dealing is premised on the same allegations as that of Plaintiff's first cause of action for breach of contract. Thus, Plaintiffs' second cause of action is duplicative and should be discarded at the pleading stage.

In every contract there is an implied covenant of good faith and fair dealing. (Sutherland v. Barclays American/Mortgage Corp. (1997) 53 Cal.App.4th 299, 314.)

The covenant of good faith and fair dealing imposes a general duty upon each contracting party "to perform faithfully and not to deprive the other party of the benefits of the contract."

(Floystrup v. City of Berkeley Rent Stabilization Bd. (1990) 219 Cal.App.3d 1309, 1318.)

A breach of the implied covenant of good faith and fair dealing requires something more than breach of the contractual duty itself. (Careau & Co v. Security Pacific Business Credit, Inc. (1990) 222 Cal.App.3d 1371, 1394.) "Thus, allegations which assert such a claim must show that the conduct of the defendant, whether or not it also constitutes a breach of a consensual contract term, demonstrates a failure or refusal to discharge contractual responsibilities, prompted not by an honest mistake, bad judgment or negligence but rather by a conscious and deliberate act, which unfairly frustrates the agreed common purposes and disappoints the reasonable expectations of the other party thereby depriving

that party of the benefits of the agreement.”

(Id. at 1395.)

In opposition, Plaintiffs cite *Wilson*

v. Houston Funeral Home (1996) 42 Cal.App.4th 1124, 1132-1133 (*Wilson*)

to argue that contracts for funeral services are unique in that they inherently involved emotional considerations and courts have recognized that such contracts imply a duty to provide services with the dignity and respect as bereaved families can reasonably expect.

(Opp., p. 6.) Plaintiffs argue

that similarly Plaintiffs contracted and expressly informed Defendants that they expected a dignified viewing service to pay their respects to their mother. (*Ibid.*, citing FAC ¶

22.)

In *Wilson*, a decedent's

wife entered into a contract with a company to provide her deceased spouse with funeral and burial services. (*Id.*

at 1129.) The decedent's wife brought an

action against the funeral service provider, alleging breach of contract and

breach of the implied covenant of good faith based on the funeral service

provider's conduct in demanding payment before driving the family to the burial

service and in driving recklessly to the burial service. (*Id.* at 1130-1131.) In holding that the complaint properly alleged

a cause of action for breach of the implied covenant of good faith, the *Wilson*

court found every contract for funeral services contains an implied covenant

that the services will be conducted with “dignity and respect toward the family

members for whose benefit the services are performed.” (*Id.* at 1133.) In reaching this conclusion, the *Wilson*

court rejected the funeral service provider's argument that the contract only

required that the decedent's family be transported to the burial service and

did not require a specific manner of transport. (*Id.* at 1132-1133.)

Here, the FAC incorporates

Plaintiffs' earlier allegations regarding the breach of contract cause of

action. (FAC, ¶ 33.) The FAC further alleges that Defendants

breached the implied covenant of good faith and fair dealing by “failing

to properly handle and preserve the DECEDENT'S remains in a manner that would

have sufficiently slowed the rate of decomposition to allow for the dignified

viewing service that was contracted for.” (*Id.*, ¶ 39.)

The Court disagrees that the

second cause of action is duplicative. Wilson is instructive insofar as it recognizes that contracts for funeral services carry an implied covenant that the services will be performed with dignity and respect toward the decedent's family. However, unlike in Wilson, the FAC here does not sufficiently allege the contractual relationship giving rise to the implied covenant. As discussed above, the FAC alleges only that "PLAINTIFFS" entered into a contract with "DEFENDANTS" but fails to identify which Plaintiff or Plaintiffs were parties to the agreement or otherwise allege the basis upon which each Plaintiff may enforce the contract. Because the implied covenant of good faith and fair dealing is implied only in the existence of a valid contract and cannot exist independently of the contractual relationship, Plaintiffs have failed to allege facts sufficient to state a claim for breach of the implied covenant.

Accordingly, the demurrer to the second cause of action is SUSTAINED WITH LEAVE TO AMEND.

Fourth

Cause of Action: Violation of Business and Professions Code section 17200

Defendants argue that Plaintiffs' fourth cause of action under Business and Professions Code section 17200 (UCL) fails because Plaintiffs have not alleged facts demonstrating that the alleged failure to provide a price list caused them to suffer any economic loss.

The UCL "focuses solely on conduct and prohibits anything that can properly be called a business practice and that at the same time is forbidden by law." (*Albillo v. Intermodal Container Services, Inc.* (2003) 114 Cal.App.4th 190, 206.) To state a claim under the UCL, a plaintiff need not plead the elements of a tort, but instead must establish that the challenged practice is "unlawful," "unfair," or "fraudulent." (*Ibid.*; see *Adhav v. Midway Rent A Car, Inc.* (2019) 37 Cal.App.5th 954, 970.) Moreover, allegations of actual deception, reasonable reliance, and damages are not required to establish a violation of the UCL. (*Searle v. Wyndham Internat., Inc.* (2002) 102 Cal.App.4th 1327, 1333.)

In opposition, Plaintiffs argue that the FAC sufficiently states a UCL claim because it alleges that Defendants

failed to provide the disclosures required by Business and Professions Code section 7685.2, thereby leaving Plaintiffs unaware of what they were paying for and inducing them to pay for services based on representations that Decedent's remains would be properly preserved for a private viewing. (Opp., p. 7.) Plaintiffs further contend that they suffered an economic loss in the amount of \$1,595, in addition to emotional distress damages. (Ibid.)

In reply, Defendants argue that Plaintiffs fail to allege facts demonstrating that the alleged failure to provide a general price list caused them to suffer any economic loss. (Reply pp. 5-6.) Defendants contend that Plaintiffs do not allege they would have declined to enter into the contract had the price list been provided, that the prices charged differed from those that should have been disclosed, or that they failed to receive the cremation services for which they paid. (Ibid.) Defendants further argue that Plaintiffs' remaining allegations concerning the mishandling of Decedent's remains merely duplicate their negligence allegations and do not state a claim under the UCL. (Id. at p. 6.)

Here, Plaintiffs allege that Defendants engaged in unlawful and unfair business practices by: (1) failing to provide the itemized price information required by Business and Professions Code section 7685.2 before entering into the contract; (2) taking advantage of Plaintiffs' grief by inducing them to purchase cremation-related services without knowing what they would receive; (3) failing to disclose accurate pricing information as required by the federal Funeral Rule (16 C.F.R. Part 453); and (4) inducing Plaintiffs to pay for services by representing that Decedent's remains would be properly preserved for a private viewing when they allegedly were not. (FAC, ¶ 60.)

The Court finds that Plaintiffs have sufficiently alleged conduct that could constitute unlawful, unfair, or fraudulent business practices. However, Plaintiffs have not adequately alleged that they lost money or property as a result of those alleged practices. (Bus. & Prof. Code, § 17204.)

Although Plaintiffs allege they paid \$1,595 for Defendants' services, the FAC does not allege facts demonstrating that this economic loss resulted from Defendants' alleged failure to provide the disclosures required by Business and Professions Code section

7685.2 or the federal Funeral Rule. The

FAC does not allege, for example, that Plaintiffs would have declined to enter into the agreement had the required disclosures been provided, that Defendants charged prices inconsistent with those required to be disclosed, or that Plaintiffs otherwise suffered an economic injury caused by the alleged statutory violations. Rather, the FAC alleges that Plaintiffs' damages stemmed from Defendants' subsequent mishandling of Decedent's remains.

Accordingly, the demurrer to the fourth cause of action is SUSTAINED WITH LEAVE TO AMEND.

Motion to Strike

The court may, upon a motion, or at any time in its discretion, and upon terms it deems proper, strike any irrelevant, false, or improper matter inserted in any pleading. (Code Civ. Proc., § 436, subd. (a).) The court may also strike all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (Id. at § 436, subd.(b).) The grounds for a motion to strike are that the pleading has irrelevant, false or improper matter, or has not been drawn or filed in conformity with laws. (Id. at § 436.) The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (Id. at § 437.)

In light of the Court's ruling sustaining the demurrer with leave to amend, the Court declines to rule on the motion to strike. Because Plaintiffs will have an opportunity to amend the pleading, Defendants may renew any appropriate challenges to the amended complaint, if necessary.

Accordingly, the motion to strike is MOOT.

Conclusion

Based on the foregoing, Defendants' demurrer to the entire First Amended Complaint, as to Defendant Christian Mendez, is SUSTAINED WITH LEAVE TO AMEND.

Defendants' demurrer to the

First, Second, and Fourth Causes of Action is SUSTAINED WITH LEAVE TO AMEND.

Defendants' motion to strike is

MOOT.

Plaintiffs Antonio Garcia, Nayeli

Garcia, and Brenda Brito shall file and serve a Second Amended Complaint within

30 days of notice of this ruling.